

Shesh Mani Patel v. B.B. Singh

Allahabad High Court · Single Judge · 2 September 2016 · Contempt Application (Civil) No. 4360 of 2016 · **Prima facie contempt; notice issued; listed for compliance**

HEADNOTE

In a civil contempt application alleging non-decision of a clause 6.5 Supply Code objection despite a writ direction to decide it within four weeks, the Allahabad High Court found prima facie contempt, issued notice, granted one further month to comply, and later listed the matter after the licensee's counsel sought time to serve a compliance affidavit. Neither the billing objection nor contempt was decided on merits.

FACTUAL SUMMARY

Shesh Mani Patel alleged that the Executive Engineer, Purvanchal Electricity Supply, Jaunpur, had not decided his clause 6.5 Supply Code application despite a 19 May 2016 writ direction in Writ-C No. 23194 of 2016, a certified copy of which was posted on 7 June 2016. On 2 September 2016 the High Court found prima facie contempt and issued notice, granting one more month to comply. On 10 November 2016 the opposite party's counsel sought time to serve a ready compliance affidavit; the matter was listed in the week of 12 December 2016.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

contempt listing for non-decision of a clause 6.5 application

HOLDING

The Court found prima facie contempt for alleged non-decision of the applicant's clause 6.5 Supply Code application despite a writ direction to decide it within four weeks, issued notice, granted one further month to comply, and later listed the matter after the opposite party sought time to serve a compliance affidavit. No merits finding on the 6.5 objection or on whether contempt was established was recorded. ¶ 1-2

PRINCIPLE TAGS

procedural-listing-no-construction In a civil contempt application alleging non-decision of a clause 6.5 Supply Code objection despite a writ direction to decide it within four weeks, the Allahabad High Court found prima facie contempt, issued notice, granted one further month to comply ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OPPOSITE PARTY WILFULLY DISOBEYED THE 19 MAY 2016 WRIT DIRECTION TO DECIDE THE CLAUSE 6.5 APPLICATION

Prima facie finding only; notice issued and further time granted to comply. ¶ 1

NOT DECIDED — MERITS OF THE APPLICANT'S CLAUSE 6.5 SUPPLY CODE APPLICATION

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